

Banez 1602 Relacion

Relación de los actos de Valladolid — Respuesta a un informe de los PP. Jesuitas acerca de las “tesis de Alcalá” (*Account of the Valladolid Acts — Reply to a Jesuit report concerning the “Alcalá theses”*)

by Domingo Báñez, O.P. (1528–1604), written 1602; first published 2019

Source: the previously unedited Báñez manuscript published by David Torrijos-Castrillejo, “Un manuscrito inédito de Domingo Báñez: Respuesta del P. Báñez a un informe de los PP. Jesuitas acerca de las ‘tesis de Alcalá’ (si es de fe o no que este hombre sea el Romano Pontífice),” *Revista Española de Teología* 79 (2019) 93–126 (edition based on the 20th-century typescript in the Dominican archive of Ávila, supplemented from V. Beltrán de Heredia, *La Ciencia Tomista* 28 [1923]).

- English translation prepared from the Torrijos-Castrillejo edition (AI-assisted); Báñez’s Latin quotations retained with glosses.
- Last Edit: July 3, 2026.
- Version: 1.0
- Selection: the complete *Respuesta* (Jesuit paragraphs P.1–P.15 in summary, Báñez’s replies R.1–R.15 in full)

Note on this selection: this is Báñez’s own first-person clarification of his position, occasioned by the “Alcalá theses” affair (Gaspar Hurtado’s 1601 act and the Jesuits’ March 1602 act defending “non est de fide hunc numero hominem esse Papam,” which led the Inquisition to imprison four Jesuits and cite the Alcalá doctors to Rome). Accused of being the thesis’s source, Báñez staged a public act at San Pablo, Valladolid, on 2 July 1602, and then wrote this point-by-point rebuttal of the Jesuits’ circulated account. In it he (1) repudiates the bare thesis, allowing it only with the qualifier “non est de fide immediate / per se primo”; (2) shows that the “solum ex humana prudentia... cui potest subesse falsum speculative” passage of his *In II-II* (col. 142), quoted against him — and quoted by the later citation tradition — was a tentative solution testing the conditional hypothesis of an unbaptized pope, expressly flagged as needing explanation and not his

resolution; (3) identifies his resolution as col. 143 § nihilominus: once the Church has accepted a man as true pope, the denier is vehemently suspect of heresy and deservedly punished as a heretic, by what he calls a theological demonstration; (4) affirms that the light of Catholic faith produces *per se* — *per se secundo*, not *per se primo et immediate* — the assent “Clemens VIII est summus Pontifex et Vicarius Christi”; (5) insists that what is *de fide per se secundo* admits no falsehood whatever, practical or speculative, and says he would denounce to the Holy Office anyone claiming otherwise; and (6) defends his teacher Melchor Cano against the same misreading: “those are mistaken who say he absolutely affirms *non esse de fide hunc hominem legitime electum ab ecclesia unanimiter absque schismate acceptum esse summum Pontificem*; for without doubt he speaks *de fide immediate*.” The printed Latin of his Valladolid Assertio 3^a is given in the parallel excerpts file. Under the distinction this repository observes, Báñez’s *Relación* shows that his listing among the “deniers” concerns only the theological note (*per se primo*), not the infallibility of the Church’s acceptance, which he affirms without reserve.

P.1 (summary). Account of the July 1602 Valladolid acts between the Dominicans and the Jesuits on whether it is of faith that the man now reigning is the true successor of Peter; four Jesuits of Alcalá detained at Toledo and certain Alcalá doctors cited to Rome; the cause was the 1601 conclusions defending “*non est de fide hunc numero hominem esse Papam*,” and the Jesuits (unlike Gerson with Gregory the Great, Báñez with Gregory XIII, and the Alcalá doctors with Clement VIII) gave no papal example.

R.1. It will not be found in my commentary on the *Secunda Secundae* of St. Thomas, q. 1, a. 10, dub. 2 — the very place where they allege against me that conclusion so bare and naked, namely *non est de fide hunc numero hominem esse Papam* (it is not of faith that this particular man is pope). On the contrary, I do not hold it for sound doctrine except with some addition, e.g. *non est de fide immediate* or *per se primo* (not of faith immediately, or primarily) — as I affirmed in the third conclusion of my public act, qualifying the contrary doctrine. Nor will it be found in my book that I bring Gregory XIII forward as an example attached to that conclusion; for although I name him three times in that doubt, the first time is in arguments 1 and 2, on the *opposing* side, from which no resolution is to be drawn; the second time, in the third solution to the second argument — a solution I do **not** approve but reject, saying at col. 142: “*Non ergo oportet expectare ut Pontifex aliquid definiat ad hoc ut nobis sit certum, secundum fidem catholicam, quod ipse est summus Pontifex*” (it is not necessary to wait for the Pontiff to define something in order for it to be certain to us, by Catholic faith, that he is the supreme Pontiff); the third time I name His Holiness Gregory XIII in the same column, § *Verumtamen*, [where] it must be said that “if faith does not immediately incline one to believe... that this man is the Pontiff, it follows that it does not incline one in particular to believe that this is the Catholic Church” — to which argument I **deny the consequence**, for the evident reason I give there, which satisfies all theologians. So the Fathers enter this account with little attention to the truth of what I have written, affirming what is not so.

P.2 (summary). Soon the two Fathers (the Rector of Alcalá and Gabriel Vázquez) were declared *entirely free*, having had no part in the conclusions; the other two (the president and the *sustentante*) were sent to the Toledo house to live freely save going outside, until further notice.

R.2. This is much knowledge of matters as secret as those of the Holy Office. What is publicly known is that they released from prison the two Fathers here named; but that they have been declared *entirely free* — since there has been no public sentence of

acquittal — I would not dare to say. What I am quite sure of is that the Holy Office will have had the imprisonment well justified, and for now releases them; what follows I do not know, nor am I bound to believe their case is wholly determined.

P.3 (summary). From the arrests, people searched authors and found many who hold or grant the Alcalá opinion probable — among them Dominicans: Cajetan, Torquemada, Cano, “a Fray Pedro in his *canonica*,” and Master Báñez, who disputed it most fully (though some of his friars deny it, not having understood him).

R.3. Father Salas, Reader of the College of Valladolid, told me they had fourteen Doctors in favor of the imprisoned and cited; I do not know why they chose to name only the Dominican Fathers, and me more particularly. It would be tedious to dispute now the meaning of the authors they cite; but as to Fray Melchor Cano, since he was my teacher, I say those are mistaken who say he absolutely affirms *non esse de fide hunc hominem legitime electum ab ecclesia, unanimiter absque schismate acceptum, esse summum Pontificem* (that it is not of faith that this man, legitimately elected by the Church and unanimously accepted without schism, is the supreme Pontiff); for without doubt he speaks *de fide immediate*. They cite “a Fray Pedro in his *canonica*”: clearly a copyist’s error — perhaps they mean Fr. Pedro de Ledesma or Fr. Pedro de Herrera, men who will answer for themselves. They may have spoken *de fide immediate*; but that they deny it to be of faith *saltem mediate* (at least mediately), I do not believe.

As to what concerns me: I am astonished how frankly they bear false witness against me, unwilling to consider what I have in print, and saying my friars have not understood me. (I do not wonder, since they also say we Dominicans have not understood St. Thomas.) I wish the Fathers had come to my act, where I demonstrated to most learned men who argued against me — without adding any new explanation beyond what the book has in the resolution of the doubt, from col. 142 to col. 144 — pointing with my finger to my resolution and saying: “*let the documents speak and let beards be silent.*” So now let me answer the strongest argument they try to make from my book.

They say at col. 142 I write: “*quapropter ad argumentum principale possumus respondere 4: quod etiam post summi Pontificis et concilii definitionem solum habetur ex humana prudentia et evidenti inquisitione, aut etiam ex infusa prudentia cui potest subesse falsum speculative, quod hic est summus Pontifex*” (therefore to the principal argument we can answer, fourthly: that even after the definition of the supreme Pontiff and of a council, that this man is the supreme Pontiff is held *only* from human prudence and evident inquiry, or even from infused prudence under which a speculative falsehood can lie). From this they infer that I deny it is of faith — neither immediately nor mediately — that this man is the supreme Pontiff, since the exclusive *solum* (only) shuts out every other ground. I do not think they can put the argument more forcibly than I do here.

I answer **first** that this fourth solution is *not my resolutive answer*; that is why I said *possumus respondere* (we can answer) — I was testing the available ways of speaking, admitting, *for the sake of argument*, the conditional case that the one held for Pontiff were not baptized (as proposed in the second argument I am there refuting); and in that conditioned case the exclusive “*ut solum habet ex humana prudentia*” could be verified. But since “*a conditional posits nothing in being*” except the consequence, there is no reason to take from it the resolution of my view.

I answer **secondly** that I qualify that fourth solution and declare it obscure in the next section: “*veruntamen haec quarta solutio explicatione opus habet*” (however, this fourth solution needs explanation). This very section I showed with my finger from the pulpit, answering the argument of Fr. Master Jerónimo de Tiedra (who, to favor me, pressed

more sharply than the Jesuit could have); and he and all the learned men in the audience were satisfied when I demonstrated that the exclusive is to be understood *of the immediate ground of believing by Catholic faith that this man is the supreme Pontiff*. This is clear from the objection I raise against myself in § *Veruntamen*: “it seems to follow that it is not necessary to believe, by faith, that this Church in particular is the Catholic Church... therefore, if faith does not incline immediately to believe... that this man is the supreme Pontiff, it follows that it does not incline one in particular to believe that this is the Catholic Church.”

Note for what purpose I name Gregory XIII of happy memory — *not*, as the Fathers say, as an example that it is not of faith that he was Pontiff. And what the fourth solution said — that prudence, human or infused, can have a speculative falsehood under it — is the common opinion of all philosophers and theologians. I say it in order to dispose of the *conditional* argument, if the case were admitted that the Pope were not baptized; for then that falsehood could in no way be attributed to Catholic faith, **neither immediately, nor mediately, nor practically, nor speculatively**. Just as a Christian deceived by a preacher into thinking it Catholic faith that the stars are even in number would, believing it, be deceived — yet if with such a conscience he denied it he would be a heretic, not because the proposition were of faith, but because in his mind he departed from the common consent of the Church. But let us leave this difficulty.

Now comes the **resolution of my doctrine**, at col. 143, § *nihilominus*: “*omnibus supra dictis non obstantibus, valde temerarium esset et scandalosum si, postquam Ecclesia acceptaverit aliquem in summum Pontificem verum, [negaret aliquis illum esse summum Pontificem] nisi ostenderet illum non esse baptizatum aut non esse virum; alioquin non solum esset vehementer suspectus de heresi, sed etiam ut hereticus merito puniretur*” (nevertheless, all the foregoing notwithstanding, it would be highly rash and scandalous if, after the Church has accepted someone as true supreme Pontiff, anyone were to deny that he is the supreme Pontiff, unless he could show him not baptized or not a man; otherwise he would be not only vehemently suspect of heresy but deservedly punished as a heretic). This is my resolution; and the reason I give is a **theological demonstration**: “*quia videretur negare in ecclesia esse potestatem eligendi summum Pontificem, Petri successorem*” (because he would seem to deny that there is in the Church the power to elect the supreme Pontiff, Peter’s successor). For unless he is mad he cannot deny what is evident to the natural light: that the cardinals are the men deputed in a certain number; that these elected this Roman Pontiff; and that, as such elected, the whole Roman — and so the whole Catholic — Church venerates and adores him as the sole Vicar of Christ, *ipso facto* confirmed by Christ’s words in the last chapter of John, “*pasce oves meas*” (feed my sheep). So that these words said to St. Peter, which are *immediately* of Catholic faith, together with a proposition evident to natural reason from the experience of this sensible and palpable election by the cardinals — the said conclusion follows by **evident consequence**, that *Clemens VIII est Vicarius Christi*. And this is what I say in my conclusions: that the light of Catholic faith *efficit per se* (produces of itself), though *non immediate et per se primo*, yet *per se secundo*, the assent to this conclusion: *Clemens VIII est summus Pontifex et Vicarius Christi*. Nor is it of avail to allege he might not be baptized, for I answer in the cited place: “*neque iudicandus est moralis casus quod aliquis ascendat ad culmen pontificatus absque eo quod sit baptizatus*” (nor is the moral case to be reckoned that anyone should ascend to the summit of the pontificate unbaptized); this I answered to Doctor Aguirre, canon of the Magistral of Segovia, a man distinguished in theology. And to the case fabulously told of a “John” who was supposed to be the eighth, between Benedict III and Nicholas I, I answered in the cited place that it was uncertain; but now I improve the opinion: it is not only uncertain but an evidently feigned fable, as Jodocus Coccius shows (*Thesaurus*, bk. 7, pp. 899–902). This is my opinion in resolution — not the one the Jesuit Fathers impute to me.

P.4 (summary). To show he held it was of faith, Báñez came to Valladolid, presided over conclusions (sustained by a Reader of Arts) at San Pablo on 2 July, dedicated to His Holiness, with the conclusion: *Hunc autem singularem hominem, v.g. Clementem VIII, esse vere Christi Vicarium, tametsi non per se et immediate fides infusa credat, tamen per se secundo tam firmum assensum effecit ut qui id negaverit... merito puniretur.*

R.4. My going to Valladolid was the counsel of the Father Masters of my Order in Salamanca and Valladolid; on arriving I went to kiss the Lord Nuncio's hand, who invited me to dine, and we first spoke more than an hour and a half; he told me he had already seen my book and was satisfied with my resolution in § *nihilominus*, col. 143. Truly one need know no more than Latin and read the resolution of the second argument sincerely to see how foreign [their imputation] is to my view. So, by His Most Illustrious Lordship's counsel, I dedicated the conclusions to His Holiness; I dictated them at San Pablo and entrusted them to a Reader of philosophy to study and answer in public; and **all of them bore on the authority of the Roman Apostolic See** — unlike those the Jesuits sustained, of which only the last bore on the title of the question; no wonder, since they very suddenly decided to imitate me and hold an act in competition. The conclusion they report — they might well not have removed a word of what is in print, for I set them all down with great care; they ought to have copied *tametsi non per se primo et immediate fides infusa credat*. In matters of more importance they are careless, or unwilling to report me faithfully.

P.5 (summary). Although some of his friars urged him to put that it was of faith *per se primo et immediate*, he refused, saying he would commit no such absurdity, as he told one of ours.

R.5. This is as false as the rest. The friars who could speak to me on this are very learned and discreet — Fr. Master Jerónimo de Tiedra, the Father Masters of the College Fr. Diego Nuño and Fr. Antonio de Sotomayor, and the Readers of theology of San Pablo — and none would dare tell me to sustain what I do not believe true, and which would contradict what I have in print. Rather, I say and swear before Our Lord that Fr. Master Diego Nuño, Regent of the College of San Gregorio (who heard me [lecture in] theology four years, thirty years ago), once asked me what censure it deserved to say it was *per se primo et immediate de fide quod hic homo est summus Pontifex*; and I answered that no graver censure occurred to me than that it was **improbable, very false and without foundation, and gave occasion for heretics to laugh at us**, since after a while we come out with a novelty to flatter the supreme Pontiff — as Master Gil, Prior of the Carmen of Valladolid, told the Jesuit who presided at their act, very plainly in the vernacular. As for their saying I told a visiting Jesuit that my friars urged me to put *per se primo et immediate* — the said Father will not say it seemed to me *per se primo et immediate de fide*; and so I say now: “*nam sedes Apostolica non indiget nostro mendacio, quod summa auctoritate abundat*” (for the Apostolic See has no need of our lie, since it abounds in supreme authority).

P.6 (summary). Great attendance of all estates — the Nuncio, the Archbishop of Genoa (special legate), the Bishop, the Constable of Castile, doctors, all orders except Augustinians and Carmelites (whose Prior forbade attendance), and the Jesuits (who excused themselves); many ladies; the act in the afternoon; Báñez opened with a brief vernacular speech.

R.6. It is notorious truth in Valladolid that the audience was so distinguished it seemed only His Holiness and the King were lacking; the Count of Alba de Liste was also there. But that the Carmelite Prior gave his friars a precept of obedience not to attend is not so, as Prior Master Gil himself says, nor had he reason to (he is a great friend of ours); they did not come because we had sent word the conclusions would be the Sunday before (the

city running bulls on Tuesday), and they had accepted a riverside recreation; the bulls not being run that day, we held the act on 2 July, and so they were already engaged. The Augustinians' absence has no mystery but that they came late and found no convenient place; some stayed in the high choir of San Pablo. They say there was a great number of ladies: of titled ladies up to six or seven, one the Countess of Alba; of other women I saw none from the pulpit, nor was there room, the theatre being ringed with standing men. I am embarrassed to answer such insinuations — "*but we are forced into a fault by another's fault.*"

P.7 (summary). The *sustentante's* Latin oration laid into the Jesuits (unnamed but unmistakable): one circumstance being that we [Jesuits] have tried to deny or doubt that Clement VIII is true Pope — at least so it has been published by persons ill-disposed to the Society in Spain and Rome, and written from Rome that it reached the Pope and caused no small indignation.

R.7. It astonishes me how the Jesuit Fathers, so discreet and cautious, lend their ears to such things and speak of them; for they wrong themselves by confessing there are persons ill-disposed to the Society who say such things, and that they believe them. They seem to have an appetite to complain and seek occasions for it — not great magnanimity — and to take to themselves what is said against the ways of heretics, as the *sustentante* did in giving the heretics as an example; if some malicious person took it maliciously, *that* is who makes the lampoon, and one should not lend ears to such things. I knew nothing of this murmuring they say is written from Rome, except by their own account against themselves. They in part wrong His Holiness, judging he so quickly believed it and is so quickly satisfied by their account. I too hold myself wronged that it be said that, presiding, I would permit my *sustentante* to say something so unworthy of his habit and of so distinguished an audience against the sacred religion of the Society; and I swear before Our Lord that those bear false witness against the *sustentante* who say he uttered that circumstance. Nor is there any reason the Jesuits should take to themselves what the *sustentante* said against heretics who, under a species of virtue, seek human favors from princes against the unity of the Roman Church — which I too preached at San Pablo on the feast of Sts. Peter and Paul before the Nuncio and Legate. I do not know why, said in Latin, it should be understood of the Jesuits rather than of the Dominicans or Franciscans or all orders — for we all wear a species of virtue, go in sheep's clothing and in habits like shrouds, and we too seek the favor of kings and princes for the increase of our orders. Again: the Jesuit Fathers truly wrong themselves in showing such appetite to complain of what they themselves ought to preach; then they would see how we do not complain.

P.8 (summary). A Franciscan proposed the argument; then Doctor Aguirre (canon of Segovia), then Doctor Coronel (prima chair), then Dominicans and others; the main intent of nearly all the arguments was to prove that what Báñez defended was what he had in print — that it is *not* of faith — though others claimed it was *de fide per se primo et immediate*.

R.8. Although the Jesuit Fathers were not at the act, they must have had a reporter — they might have chosen one of better memory. What I put forward there before so many distinguished ears was so public it would be superfluous to repeat; and if all did not conspire to deceive me, such was the applause and praise (particularly of the Nuncio, Legate, and Bishop of Valladolid and the other learned men) that I can say that, having been on many honorable occasions of letters, on none have I seen myself so in need of reflection to quench the fumes of foolish vainglory. All my friars of the Convent and College were beside themselves with contentment — no small esteem for one who knows

what it is to live in community. The Lord Bishop of Valladolid was not behindhand in honoring me, with no grief but that the Duke of Lerma had not been present at an act so glorious in that his house of San Pablo.

P.9 (summary). The act lasted ~3 hours; at the end the Constable made a speech, better understood from a letter his excellency wrote to his brother the Marquis of Berlanga, copied in this relation.

R.9. This clause is left incomplete, because it refers to a copy of the Constable's letter to his brother, **which is not here**. Had this act been held in Japan, some credulous person might take this account for true; but, held in the Court of the Catholic King and in San Pablo of Valladolid before such distinguished witnesses, I cannot grasp how the reporter(s) dared so to alter the fact. The truth: the act lasted nearly three hours with the greatest quiet and order I have seen; at the end the Nuncio sent word, by Fr. Master Tiedra behind me, that I close the act by saying in the vernacular what was to be held universally, to edify the audience. I did so. Then the Constable began to speak so low that I did not hear him until gentlemen warned me he wished to argue. So flattered was I that I begged his excellency to do me the favor, since he could do it as well as any theologian. He answered that he wished not to argue but to point out **that there was no one in Spain who held the contrary of what I had determined**, and that, some things being said in Latin and others in the vernacular, some might think there was someone who held the contrary. I answered that if anyone had said the contrary I was not the judge of that case; that what I affirmed was that **he who said what I said, and have in print, would not be touched on so much as the nap of his garment**. This was all the speech they attribute to the Constable, who, moved by zeal for the common good, wished to convey that it would not be tolerated in Spain that anyone speak against the authority of the supreme Pontiff, and that those present would set fire to whoever failed in this. What the Constable felt about the act, I am bound to believe was much good — for, having dined at his table, after the meal we read the conclusions and they pleased him, and he said he would by no means miss the act, and came among the first and waited patiently. His excellency now has notice of this Jesuit account, because Fr. Diego de Soria, Bishop of the Philippines, showed it to him, and his excellency was astonished and answered in my favor as to the substance of the act; being so distinguished a witness, I refer in all to his word.

P.10 (summary). There were various sentiments about the act, but commonly all felt it would have been far better not to have held it.

R.10. My act had no other drawback than my having discharged myself of the charge the Jesuit Fathers laid by sowing throughout the kingdom and beyond that it was *on account of my doctrine* that the imprisoned and the cited to Rome fared ill. I did what I was obliged to in defending my doctrine *cum moderamine inculpatae [tutela]* (with the moderation of blameless self-defense). And Our Lord knows that, on their part, Fathers of the College and professed house visited me and said I did them no wrong in my conclusions, but rather gave occasion to declare the [favorable] view about the imprisoned and cited. I also know they had tried to prevent the act, thinking my self-defense would diminish their authority; but they could not succeed, for I had my back well covered by superior order.

P.11 (summary). Many grave and learned persons came urging that the Jesuits hold another act with reasons.

R.11. I do not know how it squares to say that commonly all felt it better my act not be held, yet that there were reasons for the Society to hold another. If I had done wrong in holding mine, it was no good counsel that the Society do the same; and they say it was to defend themselves. They had nothing to defend, for I had not offended them — unless

they take as offense my discharging myself of the wrong they did me by publishing throughout the kingdom that it was on account of my doctrine they were imprisoned. So they wanted me to keep silent, as if the defamation were nothing, and [held] that my defending myself caused noise and obliged them to a competing act — so that they want **one God for themselves and another for me**. Far better for them to have spread that they said the same thing as I, rather than come out with the other extreme by which they condemn the imprisoned and cited — whereas I [held] the middle, as sound and free of danger as I have in print.

P.12 (summary). Two consultations of all the grave Fathers agreed it was not fitting [to hold another act]; but the day after, the Constable and other authoritative persons came and urged it, so that further consultation resolved that they hold, as quickly as possible, other conclusions on the same question, defending that it was *de fide per se primo et immediate*, as in the last conclusion of theirs (sent printed).

R.12. I do not meddle in whether the Constable or other persons of quality advised the Fathers to hold another act. But I am quite certain the Constable would not have told them to go to **the other extreme** to win honor against my act, saying it was *de fide per se primo et immediate* in the form of their last conclusion — which alone bears on their question; nor is the title of their question the same as mine; but the form of the conclusion was such that it left the resolution of the answer **in the balance**, as will be said.

P.13 (summary). Fr. Miguel Vázquez to preside, a College theology brother as *sustentante*, held in the professed-house church on 10 July, with Nuncios, Bishop, and Constable present (women not admitted); Augustinians and Carmelites attended; nine replies listed (Coronel, an Augustinian, Aguirre, a Franciscan, Negrón, the College Rector, the Carmelite Prior, Galavala, another Franciscan).

R.13. It would have been very fitting that the Father they call Miguel Vázquez (whom I do not know) had been the *sole* president; for the learned Jesuits present all presided and each gave his answer; eyewitnesses, learned and well-intentioned, told me how confusedly it was conducted — so much that the Nuncio had to correct it, bidding them speak so as to be understood. Besides, to the first argument the Jesuit theology student put, he never answered sufficiently, nor will they to this day, though they have studied it. The argument was this — **Master Cano's argument**: "*Ista conclusio 'Clemens VIII est summus Pontifex' colligitur ex una immediata de fide et altera cognita lumine naturali per evidentem consequentiam; ergo non est per se primo et immediate de fide*" (the conclusion "Clement VIII is supreme Pontiff" is gathered from one premise immediately of faith and another known by the natural light, through an evident consequence; therefore it is not of faith primarily and immediately). The antecedent is evident; the consequence is proved because "*the certitude of that singular conclusion is had from nowhere else,*" as the repliers (especially Doctor Aguirre) evidently proved. Likewise, when it was objected that from their thesis — that *per se primo* it is of faith that Clement VIII is supreme Pontiff — it followed that the contrary was heresy and the imprisoned/cited men heretics, they answered (as their own account later reports) that they did not say it was *absolutely* of faith, but *magis pium et rationi consonum* (more pious and consonant with reason), and so left it all as probable; this is what I said — that they leave it all **in the balance**, as probable and pious. But I, in my third conclusion, **qualify and censure the contrary opinion**, as I have it in print at col. 143 § *nilominus*; for what is determinately and necessarily to be believed of any Pontiff known by experience to be legitimately elected and accepted by the common consent of the Catholic Church should be taught — leaving no room for the bold man to say what he fancies, as, God helping, I intend to show more fully in an account I am preparing to dedicate to His Holiness.

Likewise, Fr. Master Negrón pressed against the [Jesuits'] last conclusion, namely: "*neque vero satisfieri censemus ab his qui, dicentes hoc esse secundario de fide, concedunt posse illi subesse falsum*" (nor do we think satisfaction is given by those who, saying this is *secondarily* of faith, concede that a **falsehood can lie under it**), asking who these were who said such a thing — **because he wished to accuse them to the Holy Office; and so would I, if I knew who says such a thing**. Indeed, were it not so clearly contained in my doctrine "*that under faith neither per se primo nor per se secundo can a falsehood lie, neither practically nor speculatively*" — as appears in my [commentary on] 2-2 q. 2 a. 3 dub. 2, and in Cajetan, col. 144 § *et si quis* — I might suspect they said it of me, as some fancied who hastily read their conclusion. Seeing the Carmelite Prior, Master Gil, it was very notorious with what serenity he told them the proverb "*incidit in Scyllam cupiens vitare Charybdim*" (he falls into Scylla wishing to avoid Charybdis), and that for himself he was certain they did not believe that *per se primo et immediate* conclusion, but put it in that form to make a bold flattery of His Holiness — though now too late. Of this there was in the audience neither noise nor scandal; rather all seemed persuaded it was so.

P.14 (summary). The *sustentante*'s Latin oration argued how dedicated the Society is to the Apostolic See — consecrating itself to the Pope's obedience with a special solemn vow, and persecuted by heretics (who call them "papists") to the death for defending papal authority.

R.14. It seems good to me that all religious praise their orders — but not by making a singularity of what is common to all; for all make a solemn vow of obedience to the supreme Pontiff per their rules, and this vow is not diminished by not naming the Pontiff's person in the profession, since clearly the vow is made to the Apostolic See and to the generals as its Vicars. I could never understand to what the supreme Pontiff can oblige a professed Jesuit, in virtue of that vow, to which he cannot oblige a Dominican in virtue of *his* solemn vow of obedience; I have asked learned Jesuits wherein that specialness consists, and none has satisfied me. As to heretics persecuting them and calling them "papists" — [the heretics] have persecuted other orders more, and of old; and that they call the Jesuits "papists," I see no mystery, since with that name they seek to insult all orders and all Christians. And as to all the arguments being aimed at proving that by none of the means by which a thing is shown *de fide immediate et per se primo* could it be proved that a singular man is true Pope — **so it is, the truth; and the arguers carried their point, and neither sustentante, nor president, nor all the Jesuits present satisfied, nor will satisfy, the principal argument nor the replies**; so nearly all came away most content at having concluded against them; and hence the decision to hold the act was not very apt, much less as regards the *per se primo et immediate*.

P.15 (summary). The Jesuits list six motives for their act: (1) to undo the published charge that the Society denied/doubted the Pope's legitimacy so as to oppose the coming De Auxiliis ruling; (2) to satisfy and conciliate the Pope, cardinals, and Nuncios; (3) to satisfy the populace persuaded the Jesuits denied any true Pope since Peter; (4) to fulfill the Society's special obligation to defend papal authority; (5) to show the denying opinion is not the whole Society's but the fewest (Suárez, Gregorio de Valencia hold the contrary); (6) because the act wronged no one, the contrary opinion being only limited ("*hoc enim magis pium...*"), and least of all the Alcalá men, who gave no papal example.

R.15. As to the **first** motive, it would have been better not to speak of it; for although false witness has been raised against the Jesuits, such is the discretion of His Holiness and the cardinals that one cannot think they will easily believe a thing so injurious to the Society — still less that for that reason His Holiness will suspend the determination in the De Auxiliis cause, so desired (at least by the Dominican friars). And certainly **the best means the Jesuit Fathers could take** to undo that false opinion would be **for**

themselves to urge His Holiness to define this cause *de auxiliis gratiae Dei*, after so many years of His Holiness's extraordinary efforts (a tenth of which would suffice for the satisfaction of Catholic doctors); this would matter more to erase those false sayings than the account they now make. And if they wished to make this account, they should have had others than themselves make it in part in Rome, trusting the one the Nuncio (who was present) will make — to which I refer entirely. Hence the **second** motive was not sufficient. Of the **third, fourth, and fifth** I say nothing, for they could have some color; but the **sixth** is the greatest drawback of their conclusions, because they served only to leave everything **in the balance**, under color of going to the other extreme — and served only to prove all that the *Complutenses* [the Alcalá men] had said, as the dispute discovered and as they themselves confess in this account; whence one concludes how useless their act was for their aim. Finally, I do not hold myself offended that they say my act “offended generally”; since it was held not in Japan but in Valladolid, little harm follows me — especially since they declared themselves on the contrary side. I forgive them all, in exchange for their taking my **sound counsel** and desisting from such extraordinary diligences, whose little foundation must at last be discovered. May Our Lord put his hand to all and give us true humility; then we shall have true peace and conformity in the sound Catholic doctrine charted by the holy ancient doctors and by St. Thomas, who is like the field marshal ordering the armies against the heretics.

Let all that has been said be subject to the correction of the Holy Roman Church and, in it, to His Holiness our most holy Father Clement VIII, whom God preserve many years for the good of his Church.

Five things this *Relación* settles

1. **Báñez repudiates the bare Alcalá thesis.** He does *not* hold “*non est de fide hunc numero hominem esse Papam*” nakedly — only “with some addition” (*non est de fide immediate / per se primo*). (R.1)
2. **The Jesuits misused his book.** The “*solum... potest subesse falsum speculative*” passage they quoted (col. 142) was a *tentative* answer testing a conditional (if the man were unbaptized), explicitly *not* his resolution; his resolution is col. 143 § *nihilominus*. (R.3)
3. **He affirms it IS of faith that Clement VIII is pope** — produced by Catholic faith *per se secundo* (not *per se primo et immediate*); denial, once the Church has accepted him, is punishable as heresy. (R.3–R.4)
4. **He thought the Jesuit over-correction (*per se primo et immediate*) “improbable, very false, without foundation”** — a flattery of the Pope that hands ammunition to heretics; the Cano-style argument (a conclusion from one *de fide* premise + one natural premise is not *per se primo* of faith) is, he says, unanswerable. (R.5, R.13)
5. **He insists *de fide secundario* is infallible.** In his own words, “under faith neither *per se primo* nor *per se secundo* can a falsehood lie, neither practically nor speculatively” — and he would *accuse to the Holy Office* anyone who said something is “secondarily of faith” yet admits a falsehood could lie under it. The speculative *falsum* belongs to *prudencia* (human or infused) and to the conditional hypothesis, **never to the assent of faith.** (R.13)